

HOUSE BILL 706

By Travis

AN ACT to amend Tennessee Code Annotated, Title 8;
Title 16 and Title 41, relative to public employee
positions.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 41, Chapter 51, is amended by adding the following as a new part:

41-51-401.

(a) The department of correction shall furnish and provide to the district attorneys general conference a total of ten (10) additional assistant district attorney general positions initially funded at compensation level 5 and thereafter compensated in accordance with § 8-7-226. The department shall also furnish and provide to the district attorneys general conference a total of ten (10) additional criminal investigator positions initially funded at compensation level 6 and thereafter compensated in accordance with § 8-7-230, to be designated and assigned in accordance with § 16-2-523.

(b) The additional assistant district attorney general positions and criminal investigator positions created and provided pursuant to subsection (a) are for the purpose of conducting specialized criminal investigations and prosecutions of any criminal offenses committed or occurring in or related to a state correctional institution, including violations of title 39, chapter 13, parts 1, 2, 3, and 5; title 39, chapter 16, parts 1, 2, 4, 5, and 6; and title 39, chapter 17, part 4. The department of correction shall grant designated assistant district attorneys general and criminal investigators complete access to the premises, books, records, electronic devices, and other evidence of criminal offenses kept or in the custody of the department. A request by the district

attorney general must be honored, and the superintendent, director, warden, or employee of any state correctional institution must give full aid, support, and cooperation to the district attorney general in the investigation or prosecution as requested.

(c) This section does not limit or otherwise impede the discretion in the performance of duties and responsibilities in the allocation of resources available to the district attorney general pursuant to § 8-7-103.

SECTION 2. Tennessee Code Annotated, Title 16, Chapter 2, Part 5, is amended by adding the following as a new section:

16-2-523.

(a) In addition to positions created under this part, effective July 1, 2025, there are created ten (10) additional assistant district attorney general positions and ten (10) additional criminal investigator positions to be designated in judicial districts as provided in this section and consistent with § 41-51-401.

(b) The additional assistant district attorney general positions and criminal investigator positions created and provided pursuant to subsection (a) are designated and assigned in judicial districts containing a state correctional institution, as follows:

(1) One (1) assistant district attorney general position and one (1) criminal investigator position are designated and assigned to the first judicial district;

(2) One (1) assistant district attorney general position and one (1) criminal investigator position are designated and assigned to the ninth judicial district;

(3) One (1) assistant district attorney general position and one (1) criminal investigator position are designated and assigned to the twelfth judicial district;

(4) One (1) assistant district attorney general position and one (1) criminal investigator position are designated and assigned to the fifteenth judicial district;

(5) One (1) assistant district attorney general position and one (1) criminal investigator position are designated and assigned to the twentieth judicial district;

(6) One (1) assistant district attorney general position and one (1) criminal investigator position are designated and assigned to the twenty-second judicial district;

(7) One (1) assistant district attorney general position and one (1) criminal investigator position are designated and assigned to the twenty-fifth judicial district;

(8) One (1) assistant district attorney general position and one (1) criminal investigator position are designated and assigned to the twenty-ninth judicial district;

(9) One (1) assistant district attorney general position and one (1) criminal investigator position are designated and assigned to the thirtieth judicial district; and

(10) One (1) assistant district attorney general position and one (1) criminal investigator position are designated and assigned to the thirty-second judicial district.

(c) The number of assistant district attorney general and criminal investigator positions created by this section, § 16-2-506, or another provision of law is the minimum number of positions authorized in each district. This section or any other provision of law does not prohibit or prevent the employment of additional assistant district attorneys

general or criminal investigators in a particular judicial district, regardless of whether the positions are funded by a state or non-state source, or whether they are specifically enumerated in this section, § 16-2-506, or another provision of law.

SECTION 3. This act takes effect July 1, 2025, the public welfare requiring it.